

GORSUCH, J., dissenting

for “the same offence” sought to carry the traditional common law rule into our Constitution.⁷ As Joseph Story put it, the Constitution’s prohibition against double jeopardy grew from a “great privilege secured by the common law” and meant “that a party shall not be tried a second time for the same offence, after he has once been convicted, or acquitted of the offence charged, by the verdict of a jury, and judgment has passed thereon for or against him.”⁸

Given all this, it might seem that Mr. Gamble should win this case handily. Alabama prosecuted him for violating a state law that “prohibits a convicted felon from possessing a pistol” and sentenced him to a year in prison.⁹ But then the federal government, apparently displeased with the sentence, charged Mr. Gamble under 18 U. S. C. § 922(g)(1) with being a felon in possession of a firearm based on the same facts that gave rise to the state prosecution. Ultimately, a federal court sentenced him to 46 months in prison and three years of supervised release. Most any ordinary speaker of English would say that Mr. Gamble was tried twice for “the same offence,” precisely what the Fifth Amendment prohibits. Tellingly, no one before us doubts that if either the federal government or Alabama had prosecuted Mr. Gamble twice on these facts and in this manner, it surely would have violated the Constitution.

So how does the government manage to evade the Fifth Amendment’s seemingly plain command? On the government’s account, the fact that federal and state authorities split up the prosecutions makes all the difference. Though the Double Jeopardy Clause doesn’t say anything about

⁷ *Ex parte Lange*, 18 Wall. 163, 170 (1874). See also *Benton v. Maryland*, 395 U. S. 784, 795–796 (1969); F. Wharton, *Criminal Law* 147 (1846).

⁸ 3 J. Story, *Commentaries on the Constitution of the United States* § 1781, p. 659 (1833).

⁹ *Ex parte Taylor*, 636 So. 2d 1246 (Ala. 1993); see Ala. Code §§ 13A–11–70(2), 13A–11–72(a) (2015).